

Court No. - 32

Case :- WRIT - C No. - 262 of 2020

Petitioner :- Santosh Kumar

Respondent :- State Of U P And Another

Counsel for Petitioner :- Nabi Ullah, Noor Saba Begum

Counsel for Respondent :- C.S.C., Mahboob Ahmad

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

Learned counsel appearing on behalf of the Electricity Department prays for and is granted three days time for seeking instructions in the matter.

Put up this matter as fresh on 13th January, 2020.

Order Date :- 7.1.2020

Arun

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Hon'ble Shashi Kant Gupta, J.

Hon'ble Piyush Agrawal, J.

Supplementary affidavit filed today is taken on record.

This writ petition has been filed, *inter alia*, for the following reliefs:

" (a) Issue a writ or direction in the nature of certiorari to quash the recovery notice dated 28.8.2019 issued by Executive Engineer Vidhyut Vitaran Khand-II U.P. Power Corporation Limited Baraipur, Kandwan, Varanasi ."

Heard the learned counsel for the petitioner, Mr. Mahboob Ahmad, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 26.12.2019 at 11.00 A.M. before the Respondent No.2, Executive Engineer along with his objection and adduce his evidence, if any, in support of his contention. The Respondent No.2, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of seven weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed and files his objection, the impugned demand notice shall

stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 14.1.2020

MLK